

20STCV26941 20STCV26941

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-06

Motion: MOTION TO CORRECT ERROR IN MINUTE ORDER NUNC PRO TUNC PER CODE OF CIVIL PROCEDURE SECTION 473(d)

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Case Number: 20STCV26941 Hearing Date: August 6, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

JIMMY

WIBAWA, et al.,

Plaintiffs,

vs.

MILESTONE DESIGN AND
DEVELOPMENT, INC,

Defendant.

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CASE NO: 20STCV26941

[TENTATIVE] ORDER RE: MOTION
TO CORRECT ERROR IN MINUTE ORDER NUNC PRO TUNC PER CODE OF CIVIL PROCEDURE
SECTION 473(d)

Dept. 731

August 6, 2026

8:30 A.M.

Matter No. 6

Moving Party: Plaintiffs, Jimmy Wibawa and Josephine Wibawa

Opposing Party: None

Notice: OK

Background Facts

On July 16, 2025, Plaintiffs Jimmy

Wibawa and Josephine Wibawa filed a motion to enforce settlement pursuant to Code of Civil Procedure section 664.6, seeking to enforce a settlement between the parties in the outstanding amount of \$33,392.37.

The Court granted Plaintiff's

unopposed motion on August 26, 2025, with the minutes reading in pertinent part:

"The court grants entry of judgment in favor of plaintiffs (Jimmy Wibawa and Josephine Wibawa) and against defendant (Milestone Design and Development Inc.) in the amount of \$3,392.37."

Later, on May 5, 2026, Plaintiffs

filed an ex parte application to correct an error in judgment, contending that the Court erroneously ordered Defendant to pay only "\$3,392.37" rather than the requested "\$33,392.37" in Plaintiff's motion, connoting a clerical error.

The Court denied that application on

May 8, 2026, pursuant to California Rules of Court, rule 3.1202(a).

A week later, on May 15, 2026,

Plaintiffs filed a new ex parte application seeking the same relief.

The Court denied the second

application on May 19, 2026, pursuant to California Rules of Court, rule 3.1203(a) and 3.1204(b). The Court moreover noted that "no judgment ha[d] been signed in this case; it is the minute order of August 26, 2025, that counsel contends is in error. Counsel is to file a noticed motion through the CRS system."

Now before the Court is Plaintiff's

motion to correct error in the August 26, 2026, minute order pursuant to Code of Civil Procedure section 473, subdivision (d).

Motion to Correct

Order

After review, the Court finds in

favor of Plaintiffs.

The court may, upon motion of the

injured party, or its own motion, correct clerical mistakes in its judgment or

orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. (Code Civ. Proc., § 473, subd. (d).)

Here, it is clear from the face of the record that Plaintiff's motion sought to enforce a settlement between the parties in the outstanding amount of \$33,392.37, and that the Court granted the motion but omitted the first "3" in the award amount to reflect \$3,393.37 rather than the requested \$33,392.37.

Pursuant to section 473, subdivision (d), based on the error shown in the record, and for lack of an opposition, Plaintiffs' motion is GRANTED.

Plaintiffs Jimmy Wibawa and Josephine Wibawa are ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 6, 2026 _____

MARK C. KIM

Judge of the
Superior Court